

Mcfarland Equipment Sales & Auctions

117 N Troy Hill Rd , Colorado Springs, CO 80916, USA
7193045008 | sales@mcfarland-equipment.com

SALES AGREEMENT

THIS SALES AGREEMENT (the "Agreement") is dated this 8th of May, 2026

BETWEEN:

SELLER:

Mcfarland Equipment Sales & Auctions
117 N Troy Hill Rd , Colorado Springs, CO 80916, USA
Phone: 7193045008
Email: sales@mcfarland-equipment.com

AND

BUYER:

Payal Patoliya
456 Market St, San Francisco, CA 94105, USA
Phone: 08238254585
Email: payal.rising416@gmail.com

IN CONSIDERATION of the covenants and agreements contained in this Agreement, the parties agree as follows:

1. Sale of Goods

The Seller agrees to sell, transfer, and deliver to the Buyer the following goods within 10–14 days after the payment is processed:

- **2024 Sany SY35U**
- Hours: 5
- Serial No.: SY0039CC85398

2. Purchase Price & Delivery Cost

The Buyer shall pay the sum of **\$31,000.00** (the "Purchase Price") by bank wire transfer as required in Clause 5, which includes the following:

Equipment Cost:	\$31,000.00
Delivery Cost:	\$660.36
Total Amount:	\$31,660.36

The Seller and Buyer acknowledge the sufficiency of this consideration. Any applicable taxes will be paid by the Seller unless the Buyer provides a valid tax exemption certificate acceptable to the relevant taxing authorities.

3. Payment

The Buyer commits to paying for the Goods in accordance with the terms of this Agreement.

4. Delivery of Goods

The Goods will be delivered to the following address:

Shipping Address: 456 Market St, San Francisco, CA 94105, USA

The Goods will be deemed received by the Buyer when delivered to the above address. The Seller is fully responsible for the shipping process.

5. Risk of Loss

The risk of loss or damage to the Goods remains with the Seller until the Goods are received by the Buyer. The Buyer shall provide insurance covering both parties' interests until full payment is made to the Seller.

6. Warranties

The Goods are sold with a **6-month warranty on the engine and drivetrain**. The Seller disclaims all other warranties, except any applicable manufacturer warranties.

7. Inspection

The Buyer has a 30-day inspection period from the date of receipt. If the Goods are damaged or defective, the Buyer may return the Goods at the Seller's expense for a full refund.

8. Title and Documents

The Seller shall deliver all necessary title documents to the Buyer with the Goods.

9. Security Interest

The Seller retains the Purchase Price in escrow until the 30-day inspection period expires.

10. Claims

Failure by the Buyer to notify the Seller of any claim within 35 days from delivery constitutes acceptance of the Goods and waives all claims.

11. Excuse for Delay or Failure

The Seller is not liable for delays or defaults due to causes beyond its control, including labor disputes, transportation issues, or accidents. If delivery cannot occur within the agreed time, the Seller may terminate this Agreement with a full refund.

12. Remedies

The Buyer's exclusive remedy for defective Goods or other losses is limited to the Purchase Price paid, plus any actual transportation charges.

13. Cancellation

The Seller may cancel this Agreement if:

- The Buyer fails to pay for any shipment when due
- The Buyer becomes insolvent or bankrupt
- The Seller deems payment prospects impaired

14. Notices

Any notices under this Agreement shall be delivered personally or by prepaid registered mail to the addresses below:

Seller: Mcfarland Equipment Sales & Auctions, 117 N Troy Hill Rd , Colorado Springs, CO 80916, USA

Buyer: Payal Patoliya, Email: payal.rising416@gmail.com , Phone: 08238254585

15. General Provisions

- Headings are for convenience and do not affect interpretation.
- All representations and warranties survive the closing of this Agreement.
- Neither party may assign obligations without written consent.
- Modifications must be in writing and signed by both parties.
- This Agreement is governed by the laws of Colorado and the Colorado Uniform Commercial Code.
- If any clause is unenforceable, the remainder remains in effect.
- This Agreement benefits and binds the parties and their successors.
- Execution in counterparts and facsimile signatures are valid.
- Time is of the essence.
- This Agreement constitutes the entire understanding between the parties.

IN WITNESS WHEREOF

The parties have executed this Sales Agreement as follows:

Buyer's Signature:



Seller's Signature: Mcfarland Equipment Sales & Auctions

